

FEDERAL MARITIME COMMISSION, WASHINGTON DC
Office of Administrative Law Judges

Muhammad Rana,
Complainant

V.

Michelle Franklin,
D.B.A "The Right Move Inc,"
Respondent

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Docket No. 19-03

September 10, 2019

BEFORE: Honorable Erin M.WIRTH, *Administrative Law Judge*.

SUPPLEMENT TO MOTION FOR ENTRY OF DEFAULT AND SUMMARY DECISION

The complainant hereby files a supplement to the Motion for Entry of Default and Summary Decision, alleging violations of 46 U.S.C. § 41102(a) and 46 U.S.C § 41102(c) [formerly § 10(a)(1) and § 10(d)(1) of the Shipping Act] by the respondent for:

- 1) Knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply. 46 U.S.C. § 41102(a).
- 2) Failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property. 46 U.S.C § 41102(c).

STATEMENT OF FACTS

The complainant is an individual consumer, a U.S citizen, who was temporarily relocating his residence from Alexandria, Virginia to Islamabad, Pakistan. The respondent is an individual ocean shipping / freight forwarder doing business as "The Right Move, Inc."

On February 6, 2019 the complainant and the respondent entered into an agreement through electronic mail where the complainant retained the services of the respondent. *See attached exhibits 1 and 2*. The agreement is simple and straightforward in that the complainant was to pay a flat rate of \$2500.00 plus \$95.00 documentation fee. In return, the respondent would arrange for the pick-up of complainant's household goods of personal effect in a 20-foot

container and ship / deliver it to the Port Qasim, Karachi, Pakistan for pick up by the complainant. According to the terms of the agreement, the flat rate included shipping or ocean freight charges from Alexandria, Virginia to Port Qasim, Karachi, Pakistan. The flat rate also included terminal handling or port of loading charges at origin. *See Complaint for Formal Adjudication, exhibits 1 and 2.*

As part of the agreement, the respondent requested the complainant to wire transfer the payment money directly into the respondent's account. On February 11, 2019 the complainant wire transferred \$2595.00 into the respondent's account. However, the wire transfer was rejected by the complainant's bank because the account was not registered to the respondent's company, "The Right Move, Inc."

On February 13, 2019 there was a three-way telephonic conversation between the complainant, the respondent and the complainant's bank representative where the respondent advised the complainant that the bank account is a personal account and requested the complainant to wire the money under her personal name "Michelle Franklin." After the telephonic conversation, on February 14, 2019, the complainant wire transferred \$2595.00 into the respondent's personal account under the name Michelle Franklin. *See Complaint for Formal Adjudication, exhibit 3 and attached exhibit E.* On February 15, 2019 the respondent acknowledged receipt of the wire in an email. *See Complaint for Formal Adjudication, exhibit 4.*

On February 15, 2019, the respondent arranged for a 20-foot container that arrived on a truck at complainant's residence in Alexandria, Virginia. After the complainant loaded the container, the truck driver gave the complainant a first bill of lading. *See Complaint for Formal Adjudication, exhibit 5.*

On or after February 15, 2019, the respondent acquired the services of Troy Container Line, Ltd, on a line of credit, to ship complainant's container cargo from Baltimore Port, Maryland to Port Qasim, Karachi, Pakistan; via MAERSK Shipping Line to be delivered to TROY's agent in Pakistan CP world, Co, Ltd. *See Complaint for Formal Adjudication, exhibit 6 and 7.* The respondent was required to pay TROY port of loading and ocean freight shipping charges, which the respondent failed to pay. *See Complaint for Formal Adjudication, exhibit 8.*

On April 2, 2019, the complainant traveled to Karachi Pakistan from Islamabad, Pakistan to receive his cargo from Port Qasim, Karachi. On April 2, 2019, the complainant went to MAERSK shipping office in Karachi and found out that TROY's delivery agent in Pakistan, CP World had placed a hold on the complainant's cargo because ocean freight / shipping charges had not been not paid by the respondent. The complainant explained to the MAERSK office that ocean freight was prepaid, but MAERKS representative asked to see an endorsement from CP World. On April 3, 2019, the respondent after ignoring several of complainant's emails for numerous days notified the complainant that her company, "The Right Move, Inc" had shutdown. *See Complaint for Formal Adjudication, exhibit 16.*

On April 3, 2019, onwards the complainant was repeatedly informed verbally by the TROY's delivery agent, that the respondent did not pay ocean freight shipping dues for complainant's cargo, as a result the complainant's cargo cannot be released until full payment was received from the respondent. When the complainant reached out to the respondent, the respondent claimed that full payment had been paid via a third party and that the shipper would not have accepted the freight cargo if the charges were not paid.

From April 5, 2019 until April 10, 2019 the respondent continued to claim via email that she had paid the shipping dues albeit via a third party, and that the payment should clear soon. During this time, the complainant continued to explain the respondent's position to the CP world, Co daily to try and get the cargo released. In response, CP world verbally requested the complainant to get evidence of payment in the form of receipt or a surrender letter from the respondent; however, when requested by the complainant, the respondent did not provide any evidence of payment and stated in an email that, "I paid the fees you have to believe me." See *Complaint for Formal Adjudication, exhibit 15*.

On April 9, 2019, CP World officially issued a letter explaining that because the respondent had not paid for shipping, complainant's cargo cannot be released. CP World also gave an alternative option for the complainant to pay the shipping dues out of pocket owed by the respondent in order to receive the cargo. See *Complaint for Formal Adjudication, exhibit 8*.

On April 10, 2019, the complainant paid CP World charges owed by the respondent in the amount of 157,000 Pakistani Rupees. See *attached exhibit 9*. On April 10, 2019, after payment to CP World, when the complainant went to get the delivery order from MAERSK Shipping company in Karachi, the complainant was informed that the 7-day free time had ended and was asked to pay an additional \$605.00 in container charges (demurrage and detention) beyond the regular 7-day free time at a standard rate of \$55.00 per day. See *Complaint for Formal Adjudication, exhibit 10*.

The complainant had brought dollars in cash with him for the truck and port charges, but had to use it to pay CP World, after which the complainant was out of cash. After this, because the complainant did not have a bank account in Pakistan; he was relying on wire transfers and remittances from his US bank account during this time, which can take from 2 to 3 business days. Plus, all banks and ocean freight shipping related offices are closed over the weekend in Pakistan. Furthermore, MAERSK Shipping Company and shipping agents in Pakistan do not accept credit cards.

On April 15, 2019, the complainant paid MAERSK shipping office in Karachi 85,000 rupees container charges through a shipping agent. See *Complaint for Formal Adjudication, exhibits 11 and 13*. After the payment was made Complainant's cargo was released for customs inspection at Port Qasim. On April 16, 2019 through April 19, 2019, the complainant's cargo underwent the procedural customs inspection, requirements and paperwork. On April 20, 2019, after receiving clearance from Pakistan's Customs Department, the cargo was not allowed to leave Port Qasim because the 'No Objection Certificate (NOC)' that was previously issued by TROY's

agent CP World expired. The Port Qasim Authority required the renewal of the No Objection Certificate from CP World.

On Monday, April 22, 2019, when the CP World offices opened after the weekend, the NOC was renewed. During this time additional 6 days of container charges (demurrage and detention) for MAERSK container had accumulated. On April 22, 2019, the complainant paid an additional 47, 536 rupees to MAERSK for container charges through a shipping agent. *See Complaint for Adjudication, exhibits 12 and 13.* On April 23, 2019, complainant's cargo finally left Port Qasim, Karachi.

VIOLATION OF 46 U.S.C. 41102(a)

The facts of this case make it quite clear that by charging the complainant and then not paying for the complainant's cargo shipping, the respondent violated 46 U.S Code 41102(a). The respondent has admitted to obtaining ocean transportation from TROY Container Line, Ltd for shipping complainant's cargo without paying for it. This fact is undisputed. The facts of this case, including respondent's email statements also make it clear that the respondent acted in bad faith and was involved in fraud and deceit.

In an email dated April 9, 2019, the respondent told the complainant:

The booking was done under another company license, because ***I knew we may get to the point we have to close.*** *See Complaint for Formal Adjudication, exhibit 18.*

Clearly, in this email, the respondent is acknowledging that she knew that her company "may get to the point" where it will close, but failed to disclose this material information to the complainant when they entered into an agreement. This information was material because had the complainant known that the respondent's company may "have to close," the complainant would not have entered into an agreement with the respondent, nor would have sought respondent's services. This clearly establishes bad faith and deceit. Furthermore, the booking was done under another company's license, which was not relayed to the complainant until April 9, 2019, even though in all the correspondence and in the agreement with the complainant, the respondent used her company's credentials. This further establishes bad faith and deceit.

Moreover, respondent claims in an email that she made the required payment to TROY Shipping Lines, Ltd through a third party. When the complainant requested evidence or proof in the form of a receipt, the respondent refused to offer any.

In the same email the respondent claims:

I paid it to the third party I used to book your shipment from the same bank account, because once again, I didn't want your shipment to get stuck if in case the Right Move Inc license is being revoked while in the process of shipping your goods. *See Complaint for Formal Adjudication, exhibit 18.*

First, there was no reason for the respondent's license to be revoked back in February 2019; in fact, the respondent's license was not revoked until July 4, 2019, for failing to maintain a valid bond. The respondent did not surrender her license, nor did the respondent file for bankruptcy. See <https://www.fmc.gov/oti/revocations-july-12-2019/>

Secondly, making a payment of about \$1000 to \$1100 to TROY Shipping Lines, Ltd would have required the respondent to send a simple wire transfer or write a simple check to TROY or use a credit card; the respondent had the money because she had received \$2595.00 from the complainant.

The respondent's claim here is highly unlikely, unreasonable and is clear proof of bad faith and deceit because there was absolutely no need to get a third party involved in paying TROY whom the respondent had directly contracted on a line of credit.

Had the respondent paid TROY without using a third party, the money would have reached TROY faster and TROY would not have placed a hold on the complainant's cargo in Karachi, Pakistan. It is clear through respondent's own email statements that the respondent did not make the appropriate payment to TROY resulting in loss and damages to the complainant.

In an email dated April 3, 2019, the respondent informed the complainant that her company, The Right Move, Inc had "shut down." See *Complaint for Adjudication, exhibit 16*. However, on April 5, 2019, respondent claimed that her company, "The Right Move is closing." In the same email she later states, "because the company is closed I am unable to pay it again." See *Complaint for Adjudication, exhibit 17*. It is to be noted that there is a difference between "closing" and "closed," this is an inconsistency in respondent's statement that indicates deceit.

On April 5, 2019, the respondent stated in an email:

I talked to the company and they are sending the payment today, but it may take a few days. See *Complaint for Adjudication, exhibit 15*.

On April 9, 2019 the respondent stated in emails:

I have been asking them to pay it for the last 4 days, they should be able to pay it today or tomorrow. See *Complaint for Adjudication, exhibit 19*.

The company I paid the money to, needs to know if to refund me, so I can refund you. See *Complaint for Adjudication, exhibit 20*.

I strongly suggest you pay directly and I will refund you, probably no later than Friday. See *Complaint for Adjudication, exhibit 21*.

On April 10, 2019 in another email the respondent stated:

I am confirming that the money was sent back to me, and I should be able to pay by Friday. See *Complaint for Adjudication, exhibit 22*.

On April 17, 2019 the respondent stated:

I will send you a refund shortly. *See Complaint for Adjudication, exhibit 23.*

On April 19, 2019 the respondent stated:

The payment will be concluded in a day or 2, of course I will try to pay as much as I am responsible for.
See Complaint for Adjudication, exhibit 24.

As recently as May 30, 2019, the respondent wrote in an email to the complainant:

A wire for \$1025 was initiated yesterday.
You should have the payment by tomorrow in the bank account you have provided. *See Motion for Entry of Default and Summary Judgment, Exhibit C.*

Despite these email statements where the respondent is telling the complainant that she will pay him or that she has initiated a wire transfer, the respondent has not paid the complainant anything. Nor has the respondent ever initiated any wire transfers to the complainant's bank account. These false email claims clearly establish respondent's deceit and bad faith. Again it is to be noted that the respondent has *never initiated any money transfer or wire transfer to the complainant's bank account.*

Therefore, a preponderance of the evidence in the record establishes that the respondent knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtained ocean transportation for complainant's property without paying for the charges that would otherwise apply in violation of 46 U.S.C. § 41102(a).

VIOLATION OF 46 U.S.C. 41102(c)

The facts of this case may also support that the respondent violated 46 U.S. Code 41102(c). On December 17, 2018, the Commission issued an interpretive rule on section 41102(c), which sets out the following elements needed in order for a complainant to establish a successful claim for reparations:

- a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- d) The practice or regulation is unjust or unreasonable; and
- e) The practice or regulation is the proximate cause of the claimed loss.

In this case, the respondent was an Ocean Transportation Intermediary (OTI), with an OTI license # 023229N issued by the commission. *See Complaint for Adjudication, Exhibit 1.* The respondent's OTI license was valid when the violations of the shipping act occurred by the respondent. In fact as recently as July 2019, the respondent's OTI license was valid. *See <https://www.fmc.gov/oti/revocations-july-12-2019/>*

The claimed acts or omission of the regulated entity are occurring on a normal, customary and continuous basis. A cursory search of the internet reveals numerous complaints by consumers against the respondent involving fraud and deceit. It is to be noted that consistent with the honorable judge's initial order, on May 15, 2019, the complainant sent an email to the respondent to initiate and discuss discovery. *See attached exhibit D.* The respondent did not respond to complainant's email about discovery. By refusing to respond to the complaint and to the complainant's emails, the complaint delayed the process. Therefore, an adverse inference should be drawn here in that, during discovery, evidence could have been uncovered that would establish that the respondent's acts involving deceit and other unreasonable practices are occurring on a normal, customary and continuous basis.

The facts of the case are clear in that the unreasonable practice by the respondent is directly connected to the delivery of the complainant's property. The practice involving deceit is unjust unreasonable; and this practice is the proximate cause of the complainant's losses and damages.

RESPONDENT'S PERSONAL LIABILITY: PIERCING THE CORPORATE VEIL

When determining personal liability and piercing the corporate veil, the Commission has considered several factors, such as the nature of the corporate ownership and control, the failure to maintain, and the failure to follow corporate formalities. *Ariel Mar. Group, Inc.*, 24 S.R.R. 517, 530 (1987).

The respondent does business as "The Right Move, Inc" and based on the record, it is hard to distinguish between the company and the respondent. The respondent Michelle Franklin during the course of her transactions with the complainant acted at the owner, director, representative, sole spokesperson to the point that a distinction could not be drawn between the Right Move Inc and the Michelle Franklin. The respondent in this case is "Michelle Franklin Doing Business as The Right Move Inc." Clearly based on the record there is no distinction here because of the complete control Michelle Franklin had over every single transaction, to the point no corporate formalities existed.

The most powerful evidence here that pierces the corporate wall beyond any doubt is the fact that the respondent used her personal bank account to receive payment in the form of a wire transfer. On February 13, 2019, the respondent told the complainant to wire transfer payment to her personal bank account which was under her name "Michelle Franklin." On February 14, 2019, the money was transferred to respondent Michelle Franklin's personal account. *See*

Attached Exhibit E. Finally as previously mentioned on pages 4, 5 & 6 there is wrongdoing, fraud and deceit involved in the respondent's transactions with the complainant which clearly pierces the corporate wall. *See Complaint for Formal Adjudication*

RESPONDENT'S EMAIL RESPONSE TO THE COMPLAINT

On August 15, 2019, the complainant received respondent's response to the complaint that the respondent wrote, on August 13, 2019, in an email to the honorable judge. It is to be noted that the respondent failed to show cause as to why the respondent was in default. If the respondent was to write a simple email in response to the complaint, there is no reason why the respondent couldn't have done it months ago. Pursuant to 46 C.F.R. § 502.62(b)(1) and the honorable judge's order, the respondent was required to show good cause why the response was not filed timely within 25 days of the receipt of the complaint for formal adjudication. Here the complainant has not shown any good cause.

In the response, the respondent claims that:

3/25/2019 - Mr. Rana still didn't provide proper details for the BOL, so I sent a reminder.
03/31/2019 – Mr. Rana started his verbal abuse and threatening because he failed to understand that changing a BOL, especially last minute is out of my hands, and take the SSL few days to process.

This is a factually inaccurate, false and deceitful statement; first there was no "verbal abuse" and second the BOL that was used for the passage had already been issued by TROY on 2/27/19. *See Complaint for Formal Adjudication, Exhibit 6.*

Also, on 4/2/2019 the complainant was informed by the shipping office that the complainant's name on the TROY issued BOL did not match the name on the complainant's passport. The complainant had given a copy of his passport to the respondent back in February. It was the respondent's responsibility to ensure that the name on the BOL matched the name on complainant's passport.

In the response to the complaint the respondent also states:

04/05/2019 – I was informed that the freight was on hold, and It seems as the payment that was submitted was applied towards an old shipment that was still pending.

This statement directly contradicts and is inconsistent with respondent's earlier emails where she claims to have paid a third party to pay TROY for the shipping. In an email dated 4/5/2019, respondent wrote:

We have paid the shipping costs to a third party to pay the SSL for this shipment. *See Complaint for Formal Adjudication, Exhibit 17*

On 4/9/2019, the respondent stated again that:

I paid it to the third party I used to book your shipment from. *See Complaint for Formal Adjudication, exhibit 18.*

These inconsistent email statements by the respondent show that her statements are not credible.

The respondent also falsely states in her response that “I have provided him with the claim form, the FMC details.” This is a false statement because never has the respondent ever provided the complainant with any claim form. This statement follows a pattern of false and deceitful statements made by the respondent throughout her correspondence with the complainant.

In the response to the complaint, the respondent goes on to claim:

The customer understood and agreed to pay and get refunded later.

This is factually inaccurate because the complainant was under duress and had no other option but to pay TROY’s agent CP World, because they were holding complainant’s cargo and personal belongings of extreme sentimental value. The complainant did not agree to pay CP World willingly, nor did the complainant enter into any sort of an agreement with the respondent here. It is well established that for an agreement to be valid there has to be a meeting of the minds without any duress or undue pressure. Here the complainant paid CP World not because he was willing to, but because he was under duress and he had no other way of getting his belongings, including sentimental items of personal effect, released.

The respondent goes on to state:

04/15/2019 – Follow up E-mail from myself to Mr. Rana to make sure all is going well for him. Ever Since , the customer kept asking for more money to be refunded, for all sorts of local port fees, demurrage and storage and additional costs that are in no way related to the failure to pay the ocean in time. He was accusing, abusive and threatening throughout the last steps of the process.

Again this is a deceitful and a false statement made by the respondent because the first time the complainant ever asked for demurrage from the respondent was in the Formal Complaint for Adjudication. And clearly the demurrage incurred upon the complainant was directly as a result of the respondent’s failure to pay the shipping fees. The Customs clearance only took 3-4 days, every other delay was directly or indirectly caused by the respondent’s failure to pay the shipping.

The respondent is falsely claiming that the complainant was abusive or threatening. This is simply not true. The complainant did remind the respondent of legal consequences such as this complaint if the respondent didn’t pay the complainant; beyond this there were no threats of any kind, nor was the complainant abusive. *See attached exhibits F and G.*

The respondent goes on to falsely state:

I offered to pay Mr. Rana back the ocean costs of course, as well as some of the demurrage days (Shipment arrived on April 3, On April 5th customer agreed to pay the ocean at destination, but only paid it on April 10 resulting in additional delays)
Mr. Rana kept asking me to pay his port fees, which are excluded and would have applied regardless.

This is another deceitful and false statement, because never has the complainant ever asked the respondent to pay port fees. The complainant paid the port fees out of pocket and is not asking for the port fees in this complaint either. Also the complainant never asked for demurrage before this complaint and never did the respondent offer to pay some of the demurrage.

The respondent also claims that:

Finally Mr. Rana provided me a family member bank details to wire the money

This is another baseless and ridiculous statement made by the respondent. The complainant never gave his family member's bank details. The complainant gave the respondent his personal bank account number for the respondent to wire the money. *See attached exhibits F and G.*

The respondent also states:

Mr. Rana was one of the last few customers we had to finish before we chose to close the company and surrender our FMC license.

This is another deceitful and false statement because the respondent did not choose to voluntarily surrender her license. According to the Commission website, the respondent's license was revoked because of failure to maintain a valid bond.

See <https://www.fmc.gov/oti/revocations-july-12-2019/>

COMPLAINANT'S DAMAGES

Respondent's failure to pay for the shipping of complainant's cargo or keep her contractual obligation along with fraud and deceit, set in motion a series of events and circumstances that caused financial damages / losses to the complainant.

The complainant had to additionally pay, TROY's agent CP World, out of pocket \$1,107.97 (157,000 Rupees) owed by the respondent to get the cargo released. *See attached exhibit 9.*

The complainant had to pay an additional \$55.00 per day container demurrage / detention charge for 17 days (April 7th through April 23rd), a total of \$935.00 (132,536.00 rupees); See <https://www.maersk.com/en/local-information/pakistan/import> ; beyond the 7-day free time, because of the delay caused by the respondent's failure to pay. *See attached exhibits 11, 12 & 13.*

Furthermore, the complainant had intended to stay in Karachi for only 3 nights for the customs clearance process. However, due respondent's failure to pay the shipping, the complainant had to stay at a hotel in Karachi for additional 18 nights, and pay a total of 388,500 Rupees in hotel lodging at a rate of 18,500 rupees per night. For the additional 18 nights lodging the total comes out to 333,000 rupees or \$2,350.03. *See attached exhibit 14.*

In addition, the complainant had to pay taxi charges at the least in the amount of about \$7.76 (1100 Rupees) per day or \$116.40 for 15 days to get to and from MAERSK Office, CP World Office, Western Union and hotel etc.

As already mentioned, the complainant had intended to stay in Karachi for only 3 days. However, due respondent's failure to pay shipping, the complainant had to stay at a hotel in Karachi for additional 18 days resulting in meals and incidental expenses (M&IE) incurred by the complainant. According to the U.S State Department the M&IE rate set for Karachi is \$82 per day. The total M&IE comes out to $18 \times \$82 = \$1,476.00$

See https://aoprals.state.gov/web920/per_diem_action.asp?MenuHide=1&CountryCode=1166

In April 2019, the price of dollar in the open market against the rupee fluctuated between 141 to 142 rupees per dollar. Therefore, the exchange rate used in this calculation is 141.70 rupees per dollar, which was also the rate used by MAERSK shipping company.

<u>Respondent's shipping dues paid by the complainant</u>	<u>\$1,107.97</u>
<u>Container charges caused by respondent's delay</u>	<u>\$935.00</u>
<u>Complainant's taxi charges</u>	<u>\$116.40</u>
<u>Complainant's lodging for 18 nights in Karachi</u>	<u>\$2,350.00</u>
<u>Cornplainant's M&IE for 18 days in Karachi</u>	<u>\$1,476.00</u>
Total Compensatory Damages/ Losses: \$5,985.40	

The Commission has the legal authority to grant the complainant the relief sought pursuant to Commission rules; based on authorities granted to the Commission under 46 U.S.C. § 41102(a) and 46 U.S.C. § 41102(c).

RELIEF SOUGHT

The complainant requests the Commission to issue a summary judgement if possible or hold a hearing if required. The complainant prays that the Commission rules against the respondent as follows:

- A. Enter a judgement that the acts and practices of the respondent were in violation of 46 U.S. Code § 41102(c).
- B. Award the complainant \$5,985.40 in compensatory damages / losses.

- C. Award the complainant \$73.00 international mail and courier charges used in filing this complaint from Pakistan.
- D. Award the complainant \$2595.00 in restitution.
- E. Issue further order(s) as the Commission determines to be proper.

Respectfully submitted by the complainant,



Muhammad J. Rana (Complainant)

I hereby certify that, on September 10, 2019, a copy of the foregoing attached Supplement to Motion for Entry of Default and Summary Decision on Default was sent to the following by the method indicated below:

FMC Administrative Judge
Erin M. Wirth

VIA Electronic Mail:
judges@fmc.gov

Michelle Franklin
D.B.A The Right Move, Inc.

VIA Electronic Mail:
mfranklin@therightmove4u.com



Muhammad J. Rana (Complainant)

Discovery and Joint Status Report

May 15 at 11:02 AM

Muhammad Rana <muhammad.rana@rocketmail.com>

To: Michelle Franklin <mfranklin@therightmove4u.com>

Hi Michelle,

Please let me know if you have a representative or if you are pro se. I need to discuss discovery and joint status report.

Thank you,
Muhammad Rana

**Complainant's Supplement to Motion for Entry of Default and Summary Judgment
Exhibit D**



WT FED#04652 BETHPAGE FEDERAL C
/FTR/BNF=MICHELLE FRANKLIN SRF#
OW00000385627500 TRN#190214092874 RFB#
OW00000385627500

02/14/19

\$2,595.00

Category

Electronic Payments

On Friday, April 5, 2019, 10:36 PM, Muhammad Rana <muhammad.rana@rocketmail.com> wrote:

Hi Michelle,

Despite everyone telling me that I have been defrauded, I believe you, I always try to see good in people.

Michelle, I do not want to wait, because after tomorrow I will be charged \$55 per day for storage. I just want what I paid for, which is my right. Please wire the money to my account today / ASAP otherwise I will be compelled to lodge a complaint with the Federal Trade Commission and FBI's online / email fraud division. TROY will issue a letter to me tomorrow implicating you in shipping fraud. In addition when I am back stateside in a couple of months I will file a claim in a civil court where I will claim damages, expenses, travel / lodge expenses and mental anguish etc.

To avoid all of this please wire the total amount that was due for shipping to my account today, so I can pay it here. My bank is Wells Fargo, my account number is: [REDACTED].

Thank you,

Muhammad

**Complainant's Supplement to Motion for Entry of Default and Summary Judgment
Exhibit F**

Re: House Goods Descriptive Inventory

Apr 8 at 1:56 PM

Muhammad Rana <muhammad.rana@rocketmail.com>

To: Michelle Franklin mfranklin@therightmove4u.com

Michelle,

I am the victim here. I did not deserve this, what you did to me is very wrong. I am stuck in a city where I don't know people, I am paying for lodging, my cargo is not being released because you did not pay TROY their dues from the money that I paid you. I kept my end of bargain, but you failed to keep yours. I have all emails and proof of what we agreed upon and what I paid you. You did not deliver the service you agreed to provide.

I am not the one saying you engaged in shipping fraud, it is TROY and CP World who are claiming this and giving me evidence. And yes I am the victim here.

I am not threatening, I am asking you to provide me with evidence that you paid TROY, so I can contest their claim here and receive my cargo. Alternatively you can wire me money to my account, so I don't have to go to court, FMC or FTC. So yes let's resolve this in a civil manner and in good faith. So please either call TROY or CP World and tell them to release my cargo, or give me proof of payment to TROY, so I can contest their claim here without paying. Or just simply wire the money to my bank account:

Wells Fargo
330 N Washington St
Alexandria, VA 22314

Account Number: [REDACTED]
Muhammad J. Rana

You can wire the money to or from any Wells Fargo branch, doesn't have to be a particular branch.

Thank you,
Muhammad Rana

**Complainant's Supplement to Motion for Entry of Default and Summary Judgment
Exhibit G**